NIMBUS CLOUD

CLOUD SERVICE UNDERTAKING

CONTRACT TITLE: Managed Cloud Hosting Agreement
CONTRACT ID: AUR-2027-001
CONTRACT TYPE: vendor
EFFECTIVE DATE: 2027-01-03
PARTY A: Aurora Software Private Limited (the "Company")
PARTY B: Nimbus Cloud Private Limited (the "Counterparty")
GOVERNING LAW: India; forum as stated in the body

SERVICE ACCEPTANCE

Aurora appoints Nimbus to operate the production environment PROD-AUR in the Bengaluru region. Nimbus accepts responsibility for the infrastructure boundary described below; application promises made by Aurora require separate review.

1 PRODUCTION BOUNDARY

1.1 Nimbus supplies compute, storage and network monitoring for PROD-AUR. Aurora controls its application code and customer support. A production incident is measured from Nimbus monitoring logs, with conflicting records reviewed jointly.

2 SERVICE PERIOD

2.1 The term begins on 2027-01-03 and ends on 2027-12-31. It renews for twelve months unless written non-renewal reaches the other party at least 60 calendar days before expiry, by 17:00 IST on 2027-11-01 for the first term.

3 MONTHLY BILLING

3.1 The monthly fee is INR 200,000, payable in arrears by the tenth calendar day of the following month at 17:00 IST. January is charged at the full monthly fee. Taxes separately invoiced are outside the stated fee. Undisputed overdue principal attracts simple interest of 0.05% per calendar day from the day after its due date, capped at INR 10,000 per invoice. Cleared payments reduce principal before subsequent daily charges; no compounding applies.

4 OUTAGE CREDIT LADDER

4.1 For each calendar month, a single continuous unplanned production outage lasting more than 120 minutes earns Aurora a credit of 10% of the monthly fee, irrespective of further duration. Monthly incident credits together are capped at 20% of that fee. Approved maintenance notified at least 48 hours in advance is excluded. Aurora must claim within 15 calendar days after the incident ends; Nimbus issues the credit on the next invoice. No cash reimbursement is automatic.

5 RESTORATION OBJECTIVE

5.1 Nimbus shall restore the affected infrastructure within six hours after receipt of a valid priority-one ticket. Missing this objective does not create a second fixed monetary penalty; clause 4.1 governs service credits. Backup restoration under AUR-2027-008 depends on this infrastructure.

6 DATA AND INCIDENT CONTROL

6.1 Nimbus acts as processor for Aurora-controlled personal data and processes it only on documented instructions. Nimbus applies access control, encryption and the applicable DPDP Act requirements and notifies Aurora of a confirmed personal-data incident within 24 hours of discovery. No unverified regulatory fine is an agreed contract charge.

7 LOSS ALLOCATION

7.1 Each party indemnifies the other for third-party intellectual-property claims caused by its own supplied materials, subject to prompt notice, control of defence and no admission without consent. Ordinary aggregate liability is capped at INR 2,400,000 per term; fraud, deliberate misconduct and confidentiality breaches are outside that cap. Credits offset recovery for the same loss.

8 EXIT AND CONTINUITY

8.1 Either party may terminate for convenience on 60 calendar days written notice or for material breach remaining uncured for 15 calendar days after receipt of a detailed notice. Nimbus supplies a usable data export within ten calendar days of termination; the export format is CSV for tabular records and original format for files. No early-exit fee applies.

9 CONFIDENTIAL MATERIAL

9.1 Both parties protect non-public information with reasonable care, disclose it only to staff and approved advisers who need access, and retain the duty for three years after termination. Lawful compelled disclosure requires prior notice where permitted.

10 TRANSFER AND INTERRUPTIONS

10.1 Assignment requires the other party's prior written consent, except a solvent internal reorganisation with no service reduction. A force-majeure notice is due within three calendar days of discovery; mitigation remains required, and affected performance only is suspended. Already-earned payment duties continue. No exclusivity is granted.

11 LAW AND DISPUTES

11.1 Indian law governs. Operational disputes first go to named service leads for ten calendar days, then senior representatives for ten further days. Courts in Bengaluru have exclusive jurisdiction for unresolved claims. Notices go to aurora-legal@aurora.example and legal@nimbus.example.

SCHEDULE A - SERVICE AND FEE CARD

Reference	Item	Agreed particulars
Row 1	Environment	PROD-AUR / Bengaluru
Row 2	Monthly fee	INR 200,000 in arrears
Row 3	Credit threshold	Continuous unplanned outage over 120 minutes
Row 4	Restoration objective	Within six hours of valid ticket

AUTHORISED REPRESENTATIVES

For and on behalf of
Aurora Software Private Limited

Signature: _____
Name: Mira Sen
Date: _____

For and on behalf of
Nimbus Cloud Private Limited

Signature: _____
Name: Rohan Mehta
Date: _____